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An Act to make further arrangements for the giving of financial assistance for the provision and improvement of housing accommodation in Scotland and for building experiments in connection therewith; to amend as respects Scotland the law relating to the permitted increase of rent in respect of improvements, to houses unfit for human habitation, and to the obligations of lessors and lessees as to repairs under short leases of houses; to make further provision for default of Scottish local authorities in their duties as to the fixing of rents; to amend in minor particulars the Housing (Scotland) Act, 1950; to enable the Secretary of State to acquire shares of authorised societies within the meaning of the Housing Act, 1914, and to dispose of moneys accruing to him from those and other shares; and for purposes connected with any of those matters. [3rd July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

EXCHEQUER SUBSIDIES FOR NEW HOUSES PROVIDED BY LOCAL AUTHORITIES AND OTHER BODIES

Payment of
subsidies.

1.—(1) The Secretary of State may approve for the purposes of this Part of this Act proposals received by him on or after the first day of November, nineteen hundred and sixty-one, for the provision of new houses—

- (a) by a local authority in the exercise of their powers to provide housing accommodation, or
- (b) by a development corporation otherwise than in pursuance of authorised arrangements made with a local authority, or
- (c) by a development corporation in pursuance of authorised arrangements made with a local authority, or
- (d) by a housing association in pursuance of authorised arrangements made with a local authority or special arrangements made with the Secretary of State, or
- (e) by the Scottish Special Housing Association in the circumstances specified in paragraph (a) or paragraph (b) of subsection (1) of section twenty-three of the Act of 1957;

and in respect of each such house so provided in accordance with proposals so approved (in this Act referred to as an

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“ approved house ”) the Secretary of State shall, subject to section eight of this Act, pay for a period of sixty years an annual exchequer subsidy determined for that house in accordance with this Part of this Act.

(2) An exchequer subsidy payable under this Part of this Act in respect of an approved house shall be paid to the local authority or other body by whom the house was provided, except that an exchequer subsidy payable in respect of an approved house provided in pursuance of authorised arrangements made with a local authority shall be paid to the local authority, who shall pay to the development corporation or housing association, as the case may be, by way of annual grant an amount not less than the exchequer subsidy.

(3) No exchequer contribution or other payment shall be payable under any of the following enactments—

(a) sections eighty-four, eighty-six, eighty-seven, and eighty-eight of the Act of 1950 ;

(b) sections two and three, and subsection (1) of section twenty-three, of the Act of 1957,

in respect of any house proposals for the provision of which were or are received by the Secretary of State on or after the first day of November, nineteen hundred and sixty-one.

2.—(1) In respect of each approved house—

(a) provided by a local authority in pursuance of any over-spill agreement within the meaning of Part II of the Act of 1957, or

(b) provided by a local authority, being an exporting authority within the meaning of the said Part II, in the district of another local authority (being an approved house in respect of which the Secretary of State is of the opinion that an exchequer subsidy under this paragraph should be paid), or

(c) provided by a development corporation otherwise than in pursuance of authorised arrangements made with a local authority, or

(d) provided by the Scottish Special Housing Association in the circumstances specified in paragraph (a) or paragraph (b) of subsection (1) of section twenty-three of the Act of 1957,

Amounts of subsidies—approved houses provided by local authorities for special purposes and houses provided by other bodies.

the amount of the annual exchequer subsidy shall (subject to the following provisions of this Part of this Act) be forty-two pounds.

(2) In respect of each approved house—

(a) provided by a local authority in accordance with arrangements made with the approval of the Secretary of State as being desirable by reason of special circumstances for the provision of housing accommodation in

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any area for persons coming to that area in order to meet the urgent needs of industry, and so coming wholly, or, in the case of the council of a county (other than a county of a city) wholly or partly, from outside the district of the authority, or

- (b) provided by a development corporation in pursuance of authorised arrangements made with a local authority, or
- (c) provided by a housing association in pursuance of authorised arrangements made with a local authority or special arrangements made with the Secretary of State,

the amount of the annual exchequer subsidy shall (subject to the following provisions of this Part of this Act) be thirty-two pounds.

Amounts of
subsidies—
other
approved
houses
provided by
local
authorities.

3.—(1) In respect of each approved house provided by a local authority and completed in any financial year, not being a house to which the last foregoing section applies, the amount of the annual exchequer subsidy shall (subject to the following provisions of this Part of this Act) be determined in accordance with this section.

(2) A comparison shall be made between—

- (a) the total of the amounts carried to the credit of the local authority's housing revenue account, as adjusted in accordance with this section, for the relevant financial year (in this section referred to as the "credits"), and
- (b) the total of the amounts carried to the debit of that account (adjusted as aforesaid) for that year (in this section referred to as the "debits").

(3) For the purposes of the comparison required by the last foregoing subsection—

- (a) it shall be assumed that in the credits, for the income for the relevant financial year from rents in respect of the houses to which the said account relates and any amounts carried to the credit of the account for that year under paragraph (c) or paragraph (d) of subsection (1) of section one hundred and thirty-eight of the Act of 1950 and under subsection (1) of section five of the Act of 1957 there has been substituted an amount equal to the aggregate of—
 - (i) the local authority's total housing valuation for the relevant financial year (ascertained in accordance with Part I of the First Schedule to this Act) and
 - (ii) if the total housing valuation is less than the amount arrived at by multiplying sixty pounds, or

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such other sum as the Secretary of State, after consultation with the Treasury, may by order prescribe, by the total number of houses for the relevant financial year (ascertained in accordance with Part II of the said Schedule), an amount equal to half the difference ;

- (b) there shall be excluded from the debits any expenditure by way of rebates from rents ;
- (c) there shall be excluded from the debits any surplus shown in the account at the end of the relevant financial year and from the credits any surplus brought forward from the account for the immediately preceding financial year ;
- (d) there shall be excluded from the debits such amount, if any, as the Secretary of State may under subsection (6) of this section direct to be so excluded.

(4) For the purposes of subsection (1) of this section the amount of the exchequer subsidy in respect of each house shall be—

- (a) if on the comparison required by subsection (2) of this section being made there is a deficit, thirty-two pounds plus the sum, if any, required by the Second Schedule to this Act to be added ;
- (b) if on that comparison being made there is no deficit and the next following subsection applies, thirty-two pounds ;
- (c) if on that comparison being made there is no deficit and the next following subsection does not apply, twelve pounds.

(5) This subsection shall apply (and accordingly paragraph (b) of the last foregoing subsection shall have effect) if on the comparison required by subsection (2) of this section being made the credits do not exceed the debits by more than the difference between—

- (a) thirty-two pounds multiplied by the estimated number of approved houses to be provided by the local authority and completed in the financial year in which the approved house in question was completed (excluding houses to which the last foregoing section applies), and
- (b) twelve pounds multiplied by that number.

(6) If it appears to the Secretary of State that in the accounts of the local authority for the relevant financial year the total amount carried to the credit of the local authority's housing repairs account from their housing revenue account in accordance with subsection (1) of section one hundred and forty of the Act of 1950 (which requires a local authority to make a

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transfer to their housing repairs account of a minimum amount equal to eight pounds for every house to which the housing revenue account relates) is, to the extent that it exceeds that minimum amount, excessive having regard to the previous practice of the local authority and to any other circumstances, he may, after consulting the local authority, direct that for the purposes of the comparison required by subsection (2) of this section some part of the total amount, so far as it exceeds that minimum amount, shall be excluded from the debits.

(7) Any order for the purposes of paragraph (a) of subsection (3) of this section shall be made by statutory instrument; and no order for those purposes shall be made unless a draft thereof has been laid before Parliament and approved by resolution of the Commons House thereof.

(8) For the purposes of the calculations required by this section to be made in relation to any local authority for any financial year there shall be used such accounts, whether provisional or final, of the local authority (being accounts for that financial year) as the Secretary of State may direct; and if provisional accounts are used nothing in this section shall be taken to require the making of any recalculation on the final accounts becoming available.

(9) Notwithstanding anything in this section the Secretary of State may direct that the subsidy payable under this section in respect of an approved house to which this section applies shall be of the same amount as if the house had been completed in the financial year immediately preceding that in which it was in fact completed:

Provided that no direction shall be given under this subsection unless—

- (a) the local authority request the Secretary of State to give such a direction, and
- (b) the Secretary of State is satisfied that it is reasonable to comply with the request.

(10) In this section and in the First and Second Schedules to this Act—

- (a) “financial year” has the same meaning as in section one hundred and seventy-four of the Local Government (Scotland) Act, 1947; and “relevant financial year” in relation to any house means the financial year preceding that in which the house was completed, except that if in the opinion of the Secretary of State adequate information as to the local authority’s housing revenue account for that year will not be available within a reasonable time after the completion of any house, the relevant financial year in relation to that house shall be such earlier financial year as the Secretary of State may determine, having regard to the availability of

information about the local authority's housing revenue account for that earlier year ; and

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- (b) any reference to an estimated number is a reference to the number as estimated by the local authority with the approval of the Secretary of State.

4. In respect of an approved house provided towards the provision of housing accommodation for the agricultural population (being an approved house in respect of which the Secretary of State considers that this section should apply) the amount of the annual exchequer subsidy payable under this Part of this Act shall be the amount determined therefor apart from this section plus twelve pounds.

Additional subsidy for approved houses provided for the agricultural population.

5. In respect of an approved house provided in a block of flats the major part of which, as determined by the Secretary of State, is of six or more storeys (inclusive of any storey constructed for use for purposes other than those of a dwelling) the amount of the annual exchequer subsidy payable under this Part of this Act shall be the amount determined therefor apart from this section plus forty pounds.

Additional subsidy for approved houses provided in blocks of flats.

6. Where the Secretary of State is satisfied, on an application made to him by a local authority or other body by whom an approved house is, or is to be, provided, that the cost of providing the house has been or will be substantially enhanced by expenses attributable—

Additional subsidy for approved houses where cost is enhanced in respect of rights of support or measures to preserve character of surroundings.

- (a) to the acquisition of rights of support, or otherwise attributable to measures taken by them for securing protection against the consequences of a subsidence of the site, or
- (b) to measures taken, with his consent, by them in the construction of the house (whether by the use of stone or other special material or otherwise howsoever) in order to preserve the character of the surroundings,

then the amount of the annual exchequer subsidy payable under this Part of this Act in respect of that house shall be the amount determined therefor apart from this section plus—

in the case of a house to which paragraph (a) of this section applies, such sum (if any) not exceeding two pounds as the Secretary of State may direct ;

in the case of a house to which paragraph (b) of this section applies, such sum (if any) not exceeding five pounds as the Secretary of State may direct.

7.—(1) If an approved house consists of or is comprised in a building erected on a site the cost of which as developed (ascertained in accordance with the provisions of the Third Schedule to this Act and expressed as a cost per acre) exceeds four thousand pounds, then in respect of that house the amount

Additional subsidy for approved houses on expensive sites.

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of the annual exchequer subsidy payable under this Part of this Act shall be the amount determined therefor apart from this section plus the amount determined in respect of the house under this section.

(2) There shall be calculated a sum (in this section referred to as "the total site subsidy") in respect of the whole site at the rate of sixty pounds per acre, increased at the rate of thirty-four pounds per acre for every thousand pounds or part of a thousand pounds by which the said cost exceeds five thousand pounds:

Provided that—

(a) if none of the buildings erected or to be erected on the site is a block of flats the major part of which, as determined by the Secretary of State, is of six or more storeys (inclusive of any storey constructed for use for purposes other than those of a dwelling) any amount by which the said cost exceeds ten thousand pounds shall be disregarded;

(b) if any building or part of a building erected or to be erected on the site is designed for use for purposes other than those of a dwelling, then, for the purpose of calculating any total site subsidy in respect of that site, the said cost shall be deemed to be reduced by so much thereof as, in the opinion of the Secretary of State, may fairly be apportioned to that building or part of a building.

(3) The total site subsidy shall be allocated in such proportions as the Secretary of State may determine among all the approved houses consisting of or comprised in buildings erected on the site; and the amount so allocated to any approved house shall be the amount to be included by virtue of subsection (1) of this section in the annual exchequer subsidy payable under this Part of this Act in respect of that house.

**Power to
abolish or
reduce
subsidies.**

8.—(1) The Secretary of State may from time to time by order direct that, in respect of approved houses of any description specified in the order, or such houses in any area so specified, exchequer subsidies under this Part of this Act—

(a) shall cease to be payable, or

(b) shall be reduced to such amount as may be specified in the order, or

(c) shall be payable for such reduced number of years as may be so specified.

(2) An order made under this section shall be so expressed as to apply only to approved houses the proposals in respect

of which were or are received by the Secretary of State after such day as may be specified in the order ; and an order may specify for the purposes of this subsection a day earlier than the day of the making of the order :

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Provided that in the case of any order made within ten years from the passing of this Act, the order shall not specify for the purposes of this subsection a day earlier than the day on which the draft of the order is laid before Parliament under the next following subsection.

(3) Any order for the purposes of this section shall be made by statutory instrument and no order for those purposes shall be made unless a draft thereof has been laid before Parliament and approved by resolution of the Commons House thereof.

(4) Before laying before Parliament the draft of an order for the purposes of this section the Secretary of State shall consult with such associations of local authorities as appear to him to be concerned, and with any particular local authority with whom consultation appears to him to be desirable.

9.—(1) If the Secretary of State is satisfied that a housing association or a development corporation have made default in giving effect to the terms of any authorised arrangements made with a local authority—

Supplementary powers with respect to subsidies for houses provided by housing associations and development corporations under authorised, or special, arrangements.

- (a) he may reduce the amount of any subsidy payable to the local authority under this Part of this Act in respect of houses provided under those authorised arrangements by the housing association or development corporation, or suspend or discontinue the payment of any such subsidy, as he thinks just, and
- (b) if the Secretary of State so reduces or suspends or discontinues the payment of the subsidy, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the housing association or development corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(2) Where a house which has been provided by a housing association or a development corporation under authorised arrangements with a local authority becomes vested in that local authority—

- (a) no further subsidy or annual grant shall, after the time of the vesting, become payable under this Part of this Act by the Secretary of State, or, as the case may be, by the local authority, in respect of the house, but
- (b) the Secretary of State may, if he thinks fit, pay to the local authority a sum equivalent to any subsidy which

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would, after the said time, have become payable to them under this Part of this Act in respect of the house if all conditions precedent to the payment of the subsidy had been at all material times observed.

(3) If the Secretary of State is satisfied that a housing association have made default in giving effect to the terms of special arrangements made with the Secretary of State for the provision of houses he may reduce the amount of any subsidy payable under this Part of this Act in respect of the houses or suspend or discontinue the payment thereof, as he thinks just.

(4) Where any house provided by a housing association under special arrangements made with the Secretary of State becomes vested in a local authority—

- (a) no further subsidy shall, after the time of the vesting, become payable by the Secretary of State under this Part of this Act in respect of the house, but
- (b) the Secretary of State may, if he thinks fit, pay to the local authority a sum equivalent to any subsidy which would, after the said time, have become payable to the housing association under this Part of this Act in respect of the house if all conditions precedent to the payment of the subsidy had been at all material times observed.

Interpretation
of Part I.

10.—(1) In this Part of this Act—

“authorised arrangements made with a local authority”, in relation to a housing association or a development corporation, means arrangements made between the association or corporation and a local authority, with the approval of the Secretary of State, under section eighty of the Act of 1950 ;

“special arrangements made with the Secretary of State”, in relation to a housing association, means arrangements made between the Secretary of State and the association for the provision of houses with a view to the approval of proposals for the houses by the Secretary of State under section one of this Act, being arrangements so made after consultation by the Secretary of State with the local authority in whose district the houses are to be provided.

(2) Any reference in this Part of this Act to a house shall be construed as including a reference to any residential accommodation provided for occupation by not more than two persons and equipped with cooking facilities for the exclusive use of those persons, notwithstanding that it is not equipped with facilities of other kinds for such exclusive use.

In this subsection the expression "cooking facilities" in relation to any residential accommodation means facilities suitable for the preparation of food for the number of persons for which the accommodation is provided, and if any question arises whether any particular facilities fall within that description it shall be decided by the Secretary of State.

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OTHER FINANCIAL PROVISIONS RELATING TO HOUSING
ACCOMMODATION*Housing accommodation provided for letting*

11.—(1) If a housing association registered under the Industrial and Provident Societies Act, 1893, submit to the Secretary of State a scheme under which they will provide housing accommodation, and satisfy the Secretary of State that under the scheme the housing accommodation so provided will be let or kept available for letting except at such times and in such cases as the Secretary of State may approve, the Secretary of State may make advances to the housing association in accordance with this section.

Advances to registered housing associations providing housing accommodation for letting.

(2) The Secretary of State may, in accordance with an agreement made by him with the housing association, make on such terms and conditions as he may approve advances to the housing association to meet the whole or any part of the expenditure incurred by the housing association in connection with the scheme, and the advances—

- (a) shall carry interest at the rate fixed by the Treasury under section one of the Public Works Loans Act, 1897, in respect of loans to local authorities made on the same date and for the same period, and
- (b) shall be repayable over such a period, not exceeding sixty years, and on such terms, as may, with the approval of the Treasury, be provided in the agreement.

(3) It shall be the duty of a housing association who have entered into an agreement under this section to comply with any directions which the Secretary of State may give to them with respect to the administration of the scheme and the disposal of assets provided under the scheme.

(4) Advances made under this section shall not exceed the aggregate sum of three million pounds.

(5) The Treasury may issue to the Secretary of State, out of the Consolidated Fund, such sums as are necessary to enable him to make advances under this section and, for the purpose of providing sums to be so issued or of providing for the replacement of sums so issued, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939 ;

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and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act.

(6) Any sums received by the Secretary of State under subsection (2) of this section shall be paid into the Exchequer and shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury as follows, that is to say—

(a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit, and

(b) so much thereof as represents interest shall be applied towards meeting such part of the annual charges for the national debt as represents interest.

(7) The Secretary of State shall, in respect of each financial year, prepare in such form and manner as the Treasury may direct an account of sums issued to him for advances under this section, and of sums received by him under this section, and of the disposal by him of those sums respectively, and send it to the Comptroller and Auditor-General not later than the end of November in the following financial year; and the Comptroller and Auditor-General shall examine, certify and report on the account and lay copies of it, together with his report, before each House of Parliament.

(8) In this section references to the provision of housing accommodation are references to the provision of housing accommodation whether by building new houses or by the conversion or improvement of existing houses or by the conversion of other buildings.

Hostels

**Extension of
s. 89 of Act
of 1950.**

12.—(1) Section eighty-nine of the Act of 1950 (under which contributions may be made by the Secretary of State in respect of a hostel provided by a local authority, housing association or development corporation) shall apply to any building provided or converted after the commencement of this Act for use as part of a hostel as it applies to a building provided or converted for use as a hostel.

(2) Subsection (1) of the said section eighty-nine shall apply to a building provided or converted by a housing association for use as a hostel under any arrangements made with them by the Secretary of State after consultation with the local authority in whose district the building is, or will be, situated as it applies to a building provided or converted for such use by a local authority:

Provided that, if the Secretary of State is satisfied that the housing association have made default in giving effect to the

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terms of the arrangements, he may reduce the amount of the contribution payable to the housing association under the said subsection (1), or suspend or discontinue the payment thereof, as he thinks just.

(3) Where a building which has been provided or converted by a housing association for use as a hostel becomes vested in a local authority, and at the time of the vesting the building is one in respect of which a contribution is payable under the said subsection (1) as applied by the last foregoing subsection—

(a) no further contributions shall, after the time of the vesting, become payable under the said subsection (1), but

(b) the Secretary of State may, if he thinks fit, pay to the local authority sums not exceeding any sums which would after that time have become payable by him under the said subsection (1) in respect of the building if all conditions precedent to the payment of the sums had been at all material times observed.

(4) In subsection (7) of the said section eighty-nine (which subsection defines the expression "hostel" for the purposes of that section) in its application to any building provided or converted after the commencement of this Act, any reference to a separate and self-contained dwelling shall be construed as a reference to a house within the meaning of Part I of this Act, and for the words "and board" there shall be substituted the words "and either board or common facilities for the preparation of food adequate to the needs of those persons, or both".

Building experiments by housing associations

13. Section ninety of the Act of 1950 (which provides for payments by the Secretary of State to local authorities, development corporations and the Scottish Special Housing Association of contributions in respect of building experiments) shall apply to a housing association (other than the Scottish Special Housing Association) as it applies to local authorities and the other bodies therein mentioned.

Application of s. 90 of Act of 1950 to housing associations (other than Scottish Special Housing Association).

Improvement of housing accommodation

14.—(1) The Secretary of State may make arrangements with a housing association for the provision of housing accommodation by the conversion or improvement of existing houses or by the conversion of other buildings:

Assistance towards improvement of houses by housing associations under arrangements made with Secretary of State.

Provided that before making arrangements under this subsection in respect of any housing accommodation the Secretary of State shall consult with the local authority in whose district the housing accommodation is, or will be, situated.

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(2) Where arrangements are made under this section the Secretary of State shall make to the housing association annually for the period of twenty financial years beginning with the year in which the carrying out of the arrangements is completed, or for such period, not exceeding sixty financial years, beginning as aforesaid as may be determined by the Secretary of State, a payment equal to three-quarters of the annual loss determined by the Secretary of State to be likely to be incurred by the association in carrying out the arrangements:

Provided that if the Secretary of State is satisfied that the association have made default in giving effect to the terms of the arrangements he may reduce the amount of any payment payable to the association under this subsection, or suspend or discontinue the payments, as he thinks just.

(3) Subsection (2) of section one hundred and seven of the Act of 1950 shall have effect in relation to a determination under the last foregoing subsection of the amount of the annual loss likely to be incurred by a housing association in carrying out arrangements made under this section as it has effect in relation to a determination of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals with the substitution, for references to the local authority, of references to the association and, for references to the proposals, of references to the arrangements.

(4) Subsection (2) of this section shall in relation to any housing accommodation situated in the Highlands and Islands have effect with the substitution for the words "three-quarters" of the words "seven-eighths".

(5) An order made under section one hundred and twenty-seven of the Act of 1950 may include provision for this section to have effect, as from such date as may be specified in the order, as if, for the proportion referred to in subsection (2) of this section and in that subsection as extended by subsection (4) of this section, there were substituted such smaller proportion, not being smaller than two-thirds, as may be specified in the order.

Provisions
relating to
Part VII of
the Act of
1950.

15.—(1) A local authority, in fixing under section one hundred and thirteen of the Act of 1950 the rent for a dwelling in respect of which an improvement grant or a standard grant is to be made, shall have regard (in addition to any other matter to which it is their duty to have regard) to the rents payable in their district for similar dwellings not let under a controlled tenancy.

(2) In paragraph (b) of subsection (1) of section one hundred and fourteen of the Act of 1950 (which requires a dwelling in

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respect of the provision or improvement of which an improvement grant or a standard grant has been made to be let or kept available for letting when it is not occupied by a person of a class defined in sub-paragraphs (i) to (iv) of that paragraph) the following sub-paragraph shall be inserted after sub-paragraph (i):—

“ (ia) where the applicant is a trustee within the meaning of the Trusts (Scotland) Act, 1921, by a person who under the trust is interested in the dwelling or the proceeds of sale thereof, or by a member of the family of such a person ; or ”

(3) The said paragraph (b) shall not apply to a dwelling held upon trust for any charitable purpose within the meaning of the Income Tax Act, 1952, so long as it is occupied or kept available for occupation for that purpose.

(4) Sub-paragraph (ii) of paragraph (c) of the said subsection (1) (under which the maximum rent payable for a dwelling in respect of which an improvement grant or a standard grant has been made is, in certain cases, determined by reference to a percentage of so much of the cost of improvement as is not set off by the grant) shall have effect in relation to works in respect of which the application for a grant is made after the commencement of this Act (being works to which the said sub-paragraph applies) as if the percentage therein referred to were twelve and one half per cent.

(5) Where, after the commencement of this Act, an application is made to a local authority for an improvement grant or a standard grant in respect of the improvement of a dwelling which is not subject to a controlled tenancy, the application may contain a request to fix for the purposes of the said paragraph (c) a rent higher than the limit imposed by sub-paragraph (ii) of that paragraph ; and if it appears to the local authority reasonable to do so, having regard to all the circumstances and, in particular, to the rents payable in their district for similar dwellings not let under a controlled tenancy they may, on approving the application, fix such higher rent for those purposes as they think reasonable ; and a rent so fixed shall be substituted in the condition set out in the said paragraph (c) for the limit imposed by the said sub-paragraph (ii).

(6) In this section “ controlled tenancy ” has the same meaning as in the Rent Act, 1957 ; “ improvement grant ” means a grant under section one hundred and eleven of the Act of 1950 ; and “ standard grant ” means a grant under section nineteen of the House Purchase and Housing Act, 1959.

PART II

Amendment of s. 2 of Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, and s. 118 of Act of 1950.

16. The following provisions, that is to say—

paragraph (a) of subsection (1) of section two of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920 (which relates to permitted increases in rent under that Act), and

section one hundred and eighteen of the Act of 1950 (which relates to the increase of rent under Part VII of that Act in certain cases),

shall, in relation to any expenditure or costs incurred after the passing of this Act, have effect as if for any reference to eight per cent. there were substituted a reference to twelve and one half per cent.

Amendment of s. 19 of the House Purchase and Housing Act, 1959.

17.—(1) For paragraph (c) of subsection (1) of section nineteen of the House Purchase and Housing Act, 1959 (which subsection lists certain improvements in respect of which local authorities are to make standard grants under that section) there shall be substituted the following paragraph—

“(c) a hot water supply at a fixed bath or shower in a bathroom, and at a wash hand basin, and at a sink.”

(2) Subsection (5) of the said section nineteen shall cease to have effect.

*Special provisions for financial assistance to Scottish
Special Housing Association*

Advances to Scottish Special Housing Association for provision of housing accommodation.

18.—(1) The Secretary of State may make advances, of such amounts, on such terms and repayable over such periods as may be approved by the Treasury, to the Scottish Special Housing Association for the purpose of—

(a) enabling or assisting the provision by the Association (whether as principals or as agents for a local authority or for any other person) of housing accommodation ;

(b) meeting the whole or any part of the expenditure incurred by the Association in connection with any scheme submitted to him by the Association under which the Association will provide housing accommodation, and as to which the Secretary of State is satisfied that the housing accommodation so provided will be let or kept available for letting except at such times and in such cases as the Secretary of State may approve ;

(c) enabling or assisting the Association to purchase, on terms approved by the Secretary of State, all or any of the assets of any authorised society within the meaning of the Housing Act, 1914, or any housing trust to which section one hundred and nineteen of the Housing (Scotland) Act, 1925, applied :

Provided that—

PART II

- (i) the aggregate amount of the advances made under this subsection, together with any advances made under subsection (1) of section ninety-four of the Act of 1950, shall not exceed one hundred and ten million pounds ;
- (ii) the aggregate amount of the advances made under paragraph (a) of this subsection in respect of the provision of housing accommodation by the conversion or improvement of existing houses or by the conversion of other buildings shall not exceed one million pounds ;
- (iii) the aggregate amount of the advances made under paragraph (b) of this subsection shall not exceed one million pounds.

(2) It shall be the duty of the Scottish Special Housing Association, if they accept any advances under paragraph (b) of the foregoing subsection in connection with a scheme, to comply with any directions which the Secretary of State may give to them with respect to the administration of the scheme and the disposal of the assets provided under the scheme.

(3) Subsections (5) to (7) of section eleven of this Act shall apply in relation to advances made under this section and sums received in repayment thereof as they apply in relation to advances made under that section and sums received in repayment thereof.

(4) In this section references to the provision of housing accommodation are references to the provision of housing accommodation whether by building new houses or by the conversion or improvement of existing houses or by the conversion of other buildings or by the acquisition of houses.

(5) Subsection (2) of section ten of this Act shall apply to references in this section to a house as it applies to such references in Part I of this Act.

19.—(1) Where the Secretary of State is satisfied that the total net annual expenditure (as calculated in accordance with rules made by the Secretary of State) necessarily incurred in the year beginning on the first day of April, nineteen hundred and sixty-two or in any subsequent year by the Scottish Special Housing Association—

Payments towards certain deficits of the Scottish Special Housing Association.

- (a) in providing new houses in respect of which payments fall to be made under section ninety-three of the Act of 1950, section twenty-three of the Act of 1957 or section one of this Act,

PART II

(b) in providing otherwise than as agents housing accommodation by the conversion or improvement of existing houses or by the conversion of other buildings, and

(c) in providing housing accommodation, being accommodation acquired by them from any such body as is mentioned in paragraph (c) of subsection (1) of the last foregoing section,

is greater than the sum of—

(i) the payments referred to in paragraph (a) of this subsection for the year in question, and

(ii) any payments made to them for the year in question under section fourteen of this Act,

the Secretary of State may, with the approval of the Treasury, make such further payment in respect of the excess as he may determine.

(2) No payments shall be made by the Secretary of State under subsection (4) of section twenty-three of the Act of 1957 for the year beginning on the first day of April, nineteen hundred and sixty-two, or any subsequent year.

**Amendment
of s. 23 of
Act of 1957.**

20. Subsection (3) of section twenty-three of the Act of 1957 (which relates to grants and advances to the Scottish Special Housing Association) shall have effect, and shall be deemed always to have had effect, as if there were added at the end thereof the words “and which is completed after the commencement of this Act.”

PART III**HOUSES UNFIT FOR HUMAN HABITATION**

**Amendment
of s. 9 of Act
of 1950.**

21.—(1) For section nine of the Act of 1950 (which relates to the power of a local authority to order the demolition or closing of an insanitary house) there shall be substituted the following section:—

“Power of
a local
authority
to make
closing and
demolition
orders.

9.—(1) Where a local authority, on consideration of an official representation or a report by their sanitary inspector or other information in their possession, are satisfied that any house is unfit for human habitation and incapable at a reasonable expense of being rendered so fit, and—

(a) the house forms only part of a building, and

(b) the building does not comprise only houses which are unfit for human habitation and incapable at a reasonable expense of being rendered so fit,

PART III

the local authority shall make an order (in this Act referred to as a "closing order") prohibiting the use of the house for human habitation as from such date as may be specified in the order, not being less than twenty-eight days from the date on which the order becomes operative.

(2) Where a local authority, on consideration of an official representation or a report by their sanitary inspector or other information in their possession, are satisfied that any building comprises only a house which is, or houses which are, unfit for human habitation and incapable at a reasonable expense of being rendered so fit, they shall make an order (in this Act referred to as a "demolition order") requiring that the building shall be vacated within such period as may be specified in the order, not being less than twenty-eight days from the date on which the order becomes operative, and that it shall be demolished within three months after the expiration of that period or, if the building is not vacated before the expiration of that period, within three months after the date on which it is vacated.

(3) If in the case of a house in respect of which a closing order has been made or a building in respect of which a demolition order has been made the local authority are satisfied, on an application made by any owner of the house or building, or any person appearing to the local authority to have reasonable cause for making the application, that the house has, or, as the case may be, the house or houses comprised in the building have, been rendered fit for human habitation, they shall make an order determining the closing, or, as the case may be, the demolition, order.

(4) Where a closing or demolition order has been made in respect of a house or building and not determined any owner of the house or building, or any person holding a heritable security over it, may give to the local authority, within a period of twenty-one days from the date of service of the order or such longer period therefrom as the local authority may, either during or after the expiry of the twenty-one days, determine to be appropriate, an undertaking in writing—

- (a) that he will within a specified period carry out such works as will, in the opinion of the local authority, render the house or,

PART III

as the case may be, all the houses in the building, fit for human habitation, or

(b) in the case of a building in respect of which a demolition order has been made, that no house in the building will be used for human habitation (unless at any time all the houses therein are rendered fit for human habitation and the local authority agree that they have been so rendered); and if an undertaking is so given the local authority shall as soon as may be either—

(i) accept the undertaking and make in respect thereof an order (in this Act referred to as a “suspension order”) suspending the closing, or, as the case may be, the demolition, order, or

(ii) reject the undertaking and serve on the person who gave the undertaking notice that they have done so:

Provided that a suspension order made in respect of an undertaking such as is mentioned in paragraph (b) of this subsection shall cease to have effect on the expiration of one year from the date of its making unless renewed, at the discretion of the local authority, at the expiration of the said year; and this proviso shall apply to any suspension order so renewed as it applies to the original order with the substitution for the reference to the making of the order of a reference to the renewal thereof.

(5) A suspension order made or renewed by a local authority may be determined by them at any time by order if they have reasonable cause to believe that there has been a breach of the undertaking in respect of which it was made or renewed.

(6) Any period—

(a) between the service of the closing or demolition order and the service of a suspension order or a notice of rejection under subsection (4) of this section, and

(b) while a suspension order is in force, shall be left out of account in reckoning in relation to the closing or demolition order in question the period of twenty-one days referred to in subsections (1) and (3) of section sixteen of this Act.

PART III

(7) Any order made or notice issued under this section in respect of a house or building shall be served—

- (a) upon the person having the control of the house or, as the case may be, the house or houses comprised in the building ;
- (b) upon any other person who is an owner of the house, or, as the case may be, any of those houses ;
- (c) upon any person holding a heritable security over the house, or, as the case may be, any of those houses, unless it appears to the local authority, after exercising their powers under section one hundred and sixty-eight of this Act, that there is no such person ; and
- (d) where an application has been made in relation to the house, or, as the case may be, those houses, under subsection (3) of this section, by a person upon whom the order or notice is not required to be served apart from this paragraph, upon that person.

(8) Section one hundred and sixty-eight of this Act shall apply in relation to an order required by the last foregoing subsection to be served as it applies in relation to the notices mentioned in the said section.

(9) In this section references to an owner of, and any person holding a heritable security over, a building shall be construed as including respectively references to an owner of, and to any person holding a heritable security over, any part of the building."

(2) This section shall not affect any order made, or proceedings begun, under section nine of the Act of 1950 before the commencement of this Act.

22.—(1) Where a local authority have demolished a building in exercise of the powers conferred on them by section fourteen of the Act of 1950 and the expenses thereby incurred by them cannot be recovered by reason of the fact that the owner of the building cannot be found, the local authority may be authorised by the Secretary of State to purchase compulsorily the site of the building, including the area of any yard, garden or pertinent belonging to the building or usually enjoyed therewith.

Power of local authorities to purchase sites of demolished buildings where expenses cannot be recovered.

PART III

(2) The provisions of the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply in relation to a compulsory purchase of land under the foregoing subsection as if that subsection had been in force immediately before the commencement of that Act.

(3) The local authority shall be entitled to deduct from the compensation payable on the compulsory purchase of the site of a building under this section the amount of the expenses referred to in subsection (1) of this section so far as not otherwise recovered.

(4) This section shall be included among the enactments to which section twenty-two of the Housing and Town Development (Scotland) Act, 1957 (which provides a special procedure for completion of compulsory acquisition of land under certain enactments), applies; and accordingly subsection (1) of that section shall have effect as if after the words "Housing (Repairs and Rents) (Scotland) Act, 1954" there were inserted the words "or section twenty-two of the Housing (Scotland) Act, 1962".

(5) A local authority shall deal with any land purchased by them under this section by sale, letting or appropriation in accordance with the provisions of section thirty of the Act of 1950.

**Security for
expenditure of
local authority
in demolishing
buildings
under s. 14 of
Act of 1950.**

23. Where in exercise of the power conferred on them by section fourteen of the Act of 1950 a local authority have themselves incurred expenses in the demolition of a building, it shall be competent for them to make, in relation to the site of the building, including the area of any yard, garden or pertinent belonging to the building or usually enjoyed therewith, a charging order in favour of themselves in respect of such expenses, and the provisions of sections twenty and twenty-one of the Act of 1950 shall, subject to any necessary modifications, apply to a charging order so made in like manner as they apply to a charging order made under the said section twenty.

**Determination
of unfitness
for human
habitation.**

24.—(1) In determining for any of the purposes of the Act of 1950 whether a house is unfit for human habitation regard shall be had to its condition in respect of the following matters:—

- (a) general state of repair;
- (b) structural stability;
- (c) freedom from dampness;
- (d) natural lighting;
- (e) air space;
- (f) ventilation;
- (g) adequacy and accessibility of water supply;

(h) adequacy and accessibility of sanitary and other conveniences; **PART III**

(i) drainage;

(j) condition of paving and drainage of courts, yards or passages;

(k) facilities for storage, preparation and cooking of food and for the disposal of waste water;

and the house shall be determined to be unfit for human habitation if, and only if, it is so far defective in one or more of the said matters that it is not reasonably suitable for occupation in that condition.

(2) The foregoing subsection shall be without prejudice to sections eleven and twenty-three of the Act of 1950.

(3) Subsection (2) of section one hundred and eighty-four of the Act of 1950 shall cease to have effect, and any reference in any enactment to that subsection shall be construed as a reference to this section.

PART IV

REPAIRS PROVISIONS IN LEASES

25.—(1) In any lease of a house, being a lease to which this section applies, there shall be implied a provision that the lessor will— **Repairing obligations in short leases of houses.**

(a) keep in repair the structure and exterior of the house (including drains, gutters and external pipes); and

(b) keep in repair and proper working order the installations in the house—

(i) for the supply of water, gas and electricity, and for sanitation (including basins, sinks, baths and sanitary conveniences but not, except as aforesaid, fixtures, fittings and appliances for making use of the supply of water, gas or electricity), and

(ii) for space heating or heating water,

and any provision that the lessee will repair the premises (including any that he will put in repair or deliver up in repair, or will paint, point or render the premises, or pay money in lieu of repairs by the lessee or on account of repairs by the lessor) shall be of no effect so far as it relates to any of the matters mentioned in paragraphs (a) and (b) of this subsection.

(2) The provision implied by this section (hereinafter referred to as “the implied repairs provision”) shall not be construed as requiring the lessor—

(a) to carry out any works or repairs for which the lessee is liable by virtue of his duty to use the premises in a proper manner, or would be so liable apart from any express undertaking on his part;

PART IV

(b) to rebuild or reinstate the premises in the case of destruction or damage by fire, or by tempest, flood or other inevitable accident ; or

(c) to keep in repair or maintain anything which the lessee is entitled to remove from the house ;

and subsection (1) of this section shall not avoid so much of any provision as imposes on the lessee any of the requirements mentioned in paragraph (a) or paragraph (c) of this subsection.

(3) In determining the standard of repair required by the implied repairs provision in relation to any house, regard shall be had to the age, character and prospective life of the house and the locality in which it is situated.

(4) In any lease in which the implied repairs provision is implied there shall also be implied a provision that the lessor, or any person authorised by him in writing, may at reasonable times of the day, on giving twenty-four hours notice in writing to the occupier, enter the premises comprised in the lease for the purpose of viewing their condition and state of repair.

**Application
of s. 25.**

26.—(1) Subject to the provisions of this section, the last foregoing section applies to any lease of a house granted after the passing of this Act, being a lease for a period of less than seven years.

(2) For the purposes of this section a lease—

(a) shall be treated as a lease for a period of less than seven years if it is determinable at the option of the lessor before the expiration of seven years from the commencement of the period of the lease, and

(b) shall be treated as a lease for a period of seven years or more if it confers on the lessee an option for renewal for a period which, together with the original period, amounts to seven years or more, and it is not determinable as mentioned in the foregoing paragraph.

(3) Where a lease (hereinafter referred to as “ the new lease ”) of a house is granted—

(a) to a person who, when or immediately before the new lease is granted, is or was the lessee of the house under another lease, or

(b) to a person who was the lessee of the house under another lease which terminated at some time before the new lease is granted and who, between the termination of that other lease and the grant of the new lease was continuously in possession of the house or entitled to the rents or profits thereof,

the last foregoing section shall not apply to the new lease unless the other lease, if granted after the passing of this Act, was a lease to which the last foregoing section applies, or, if granted before the passing of this Act, would have been such a lease if it had been granted after that date.

PART IV

(4) The last foregoing section shall not apply to any lease of a house which is a tenancy of an agricultural holding within the meaning of the *Agricultural Holdings (Scotland) Act, 1949*.

(5) In the application of this section to a lease for a period part of which falls before the date of the granting of the lease, that part shall be left out of account and the lease shall be treated as a lease for a period commencing with the date of the granting.

27.—(1) The sheriff may, on the application of either party to a lease, by order made with the consent of the other party concerned, authorise the inclusion in the lease, or in any agreement collateral to the lease, of provisions excluding or modifying in relation to the lease the provisions of section twenty-five of this Act with respect to the repairing obligations of the parties if it appears to him, having regard to the other terms and conditions of the lease and to all the circumstances of the case, that it is reasonable to do so, and any provision so authorised shall have effect accordingly. Restriction of contracting out.

(2) Subject to the last foregoing subsection, any provision, whether contained in a lease to which the said section twenty-five applies or in any agreement collateral to such a lease, shall be void so far as it purports to exclude or limit the obligations of the lessor or the immunities of the lessee under that section, or to provide for an irritancy of the lease or impose on the lessee any penalty, disability or obligation, in the event of his enforcing or relying upon those obligations or immunities.

(3) Applications under this section shall be conducted and disposed of in the summary manner in which proceedings are conducted and disposed of under the *Small Debt (Scotland) Acts, 1837 to 1889*, and the decision of the sheriff in any such application shall be final and not subject to review.

28. In this Part of this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say— Interpretation of Part IV.

“lease” includes a sublease, and “lessor” and “lessee”, in relation to a lease, include respectively any person for the time being holding the interest of the lessor, and any person for the time being holding the interest of the lessee, under the lease ;

PART IV

“lease of a house” means a lease whereby a building or part of a building is let wholly or mainly as a private dwelling and “house”, in relation to such a lease, means that building or part of a building.

PART V**MISCELLANEOUS AND SUPPLEMENTAL**

Default powers of Secretary of State in relation to rents.

29.—(1) Where after the holding of a local inquiry under section three hundred and fifty-six of the Local Government (Scotland) Act, 1947 (which provides for defaults of local authorities), the Secretary of State is satisfied that there has been a failure on the part of a local authority to do what is required of them by subsection (5) of section seventy-three of the Act of 1950 (which relates to review and changes of rents of houses under the management of a local authority) he may make a rents scheme for all or any of the houses under the management of that local authority, and if he makes an order under subsection (2) of the said section three hundred and fifty-six declaring the local authority to be in default in respect of the failure (in this section referred to as a “default order”) he may include in the directions which, under that subsection, he may make in the default order a direction that the local authority shall in managing the houses in question comply with the scheme so long as the direction is in force.

(2) If—

- (a) by a default order, whether made before or after the commencement of this Act, the Secretary of State has declared a local authority to be in default in respect of a failure such as is mentioned in subsection (1) of this section, and directed the local authority to take within a specified time steps to remedy the default, but has not directed them to comply with a rents scheme, and
- (b) the local authority fail to comply with any requirement of the default order within the time limited thereby for compliance with that requirement,

then, without prejudice to subsection (3) of the said section three hundred and fifty-six, the Secretary of State may make a rents scheme for all or any of the houses under the management of that local authority, and may by order (in this section referred to as a “supplementary order”) direct the local authority in managing the houses to comply with the scheme so long as the direction is in force.

PART V

(3) In this section "rents scheme" in relation to any houses means a scheme making such provision as the Secretary of State after consultation with the local authority concerned thinks fit—

- (a) for fixing the rents to be charged for those houses, subject to such variation as may be provided for in the scheme, and
- (b) if the Secretary of State thinks fit, for granting, in such cases and subject to such conditions as may be specified in the scheme, rebates from those rents ;

and a rents scheme may provide as aforesaid in relation to rents generally or to particular rents.

(4) Subsection (3) of the said section three hundred and fifty-six (which relates to enforcement) shall have effect as if any reference therein to any requirement of a default order included a reference to any requirement of a rents scheme to which the local authority has been directed under this section (whether in a default order or in a supplementary order) to comply, so however that, in relation to any requirement of a rents scheme,—

- (a) any reference in the said subsection (3) to the time limited by the default order for compliance shall be construed as a reference to the time during which the direction to comply with the rents scheme is in force, and
- (b) any reference to the functions in respect of which there has been default shall be construed as a reference to the duty to manage the houses in question in accordance with the rents scheme.

(5) While a direction to comply with a rents scheme made under this section in relation to any of the houses under the management of a local authority is in force the local authority shall comply with the scheme and, subject to the next following subsection, shall not, except so far as the Secretary of State may allow, exercise in relation to the rents in question their functions under subsections (4) or (5) of section seventy-three of the Act of 1950.

(6) If the scheme does not make provision for granting rebates from the rents to which it relates the local authority may exercise their functions under the said subsections (4) or (5) so far as relating to rebates, but only in accordance with a scheme made by them and approved by the Secretary of State.

(7) Section three hundred and seventy-two of the Local Government (Scotland) Act, 1947 (which relates to the revocation of, and other matters concerning, certain orders, including default orders), shall apply to a supplementary order as it applies to a default order, and the power conferred by that section to alter an order shall include power to alter a rents scheme to which an order relates.

PART V

**Extension of
s. 62 of Act
of 1950.**

30. The power of a local authority to acquire land under section sixty-two of the Act of 1950 shall include power to acquire land (including houses or other buildings) proposed to be used for any purpose authorised by section sixty-six or section sixty-seven of the Act of 1950 (which confer additional powers in connection with the provision of housing accommodation), whether or not that land forms part of a site for the erection of houses.

**Amendment
of s. 82 of
Act of 1950.**

31. In subsection (2) of section eighty-two of the Act of 1950 (which empowers the Secretary of State to make a grant towards the expenses of a central association for promoting the formation and extension of housing associations in any of the five years next following the date on which he recognises that body for the purposes of that section) the words "in any of the five years next following the date on which he recognises the said central association or body" shall cease to have effect; and for the word "thereof" there shall be substituted the words "of the said association or body".

**Amendment
of s. 101 of
Act of 1950.**

32.—(1) Where in the case of any house—

- (a) the condition specified in paragraph (a) of subsection (3) of section one hundred and one of the Act of 1950 (which imposes conditions in respect of financial assistance given under section one hundred of that Act for the provision by private persons of housing accommodation for the agricultural population), or
- (b) the condition specified in that subsection as applied with modifications by subsection (8) of section three of the *Housing (Scotland) Act, 1952* (which relates to similar matters),

applies in respect of any assistance, whether given before or after the commencement of this Act, the local authority may at any time, if satisfied that the house is no longer required for a member of the agricultural population, waive their right to enforce that condition in so far as it restricts the category of person to whom the house may be let or, as the case may be, by whom it may be occupied:

Provided that the power conferred by this subsection shall be exercisable only with the consent of the Secretary of State.

(2) A local authority may make any exercise of the power conferred on them by the foregoing subsection conditional on the application in relation to the house in question, for such part of the period of forty years from the date of completion of the house as remains unexpired at the time of the exercise, of such other conditions (if any) as the Secretary of State may approve; and subsection (4) of the said section one hundred

and one shall apply in relation to any breach of a condition applying in relation to the house by virtue of this subsection as it applies in relation to a breach of the conditions therein specified.

PART V

33. The Secretary of State, with the approval of the Treasury, may acquire shares in any authorised society within the meaning of the Housing Act, 1914.

Power of Secretary of State to acquire shares in certain housing societies.

34.—(1) There shall be defrayed out of moneys provided by Parliament—

Financial provisions.

(a) the sums required for the making of any payment which the Secretary of State is required or authorised by any provision of this Act, except sections eleven and eighteen thereof, to make, and

(b) any increase attributable to the provisions of this Act in the sums required or authorised under any other Act to be so defrayed.

(2) If, in the case of any such society as is mentioned in the last foregoing section, or in the case of any trust to which section one hundred and nineteen of the Housing (Scotland) Act, 1925, applied,—

(a) the society or trust is wound up, and

(b) the Secretary of State is at the commencement of the winding up the owner of all the shares therein,

the Secretary of State shall pay into the Exchequer any sum received by him on the winding up.

(3) If the sum paid into the Exchequer under the last foregoing subsection in respect of any such society or trust as aforesaid is less than the amount outstanding, as at the commencement of the winding up of the society or trust, of any advances made to the society or trust by any government department, the Secretary of State shall pay into the Exchequer a sum equal to the difference.

35.—(1) The enactments mentioned in the Fourth Schedule to this Act shall have effect subject to the modifications there specified, being, in the case of those in Part I, modifications consequential on the provisions of Parts I and II of this Act; in the case of those in Part II, modifications relating to houses unfit for human habitation; and in the case of those in Part III, modifications relating to other matters.

Modification of other enactments and repeals.

(2) The enactments mentioned in the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

PART V**36.—(1) In this Act—****Interpretation.**

“ Act of 1950 ” means the Housing (Scotland) Act, 1950 ;

“ Act of 1957 ” means the Housing and Town Development (Scotland) Act, 1957.

(2) Any reference in this Act to a house shall be construed as including a reference to a dwelling.

(3) This Act shall be construed as one with the Act of 1950, so however that the expression “ housing association ” shall not in this Act be construed as including a development corporation.

(4) Except where the context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by or under any other enactment, including this Act.

**Citation
and extent.**

37.—(1) This Act may be cited as the Housing (Scotland) Act, 1962, and this Act and the Housing (Scotland) Acts, 1950 to 1959, may be cited together as the Housing (Scotland) Acts, 1950 to 1962.

(2) This Act shall extend to Scotland only.

SCHEDULES

Section 3.

FIRST SCHEDULE

PART I

Ascertainment of total housing valuation for purposes of section 3

1. For the purposes of section three of this Act a local authority's total housing valuation for any relevant financial year shall be ascertained in accordance with this Part of this Schedule.

2. There shall be ascertained—

- (a) the aggregate of the gross annual values of all the houses to which the local authority's housing revenue account related at the end of the relevant financial year, and
- (b) the aggregate of the gross annual values of all the houses to which the local authority's housing revenue account related at the end of the financial year immediately preceding the relevant financial year:

Provided that in ascertaining the said aggregates there shall be excluded such part of the gross annual value of any house as may be certified by the assessor to be attributable to any garage provided otherwise than by the local authority.

3. The amounts ascertained under the last foregoing paragraph shall be added together and their sum shall be divided by two; and the result shall be the local authority's total housing valuation for the relevant financial year.

4. Any reference in this Part of this Schedule to the gross annual value of a house to which a local authority's housing revenue account related at the end of any financial year shall be construed as a reference to the gross annual value of that house, determined under section six of the Valuation and Rating (Scotland) Act, 1956, as shown in the valuation roll in operation on the first day of the financial year immediately following the financial year in question; so however that if no gross annual value determined as aforesaid is shown for that house in that valuation roll the reference shall be construed as a reference to the gross annual value of the house as shown, so determined, in the first valuation roll in which such gross annual valuation is shown:

Provided that, in relation to any house completed after the fifteenth day of May in the financial year in question, any such reference shall be construed as a reference to such value as may be estimated by the assessor to be the gross annual value, determined as aforesaid, of the house.

5. References in this Part of this Schedule to the assessor, in relation to any house, are references to the assessor appointed under section one of the Valuation and Rating (Scotland) Act, 1956, for the area in which the house is situated.

PART II

Ascertainment of total number of houses for purposes of section 3

6. For the purposes of section three of this Act the total number of houses, in relation to a local authority, for any relevant financial year shall be ascertained in accordance with this Part of this Schedule.

1ST SCH.

7. There shall be ascertained—

- (a) the number of houses to which the local authority's housing revenue account related at the end of the relevant financial year, and
- (b) the number of houses to which the local authority's housing revenue account related at the end of the financial year immediately preceding the relevant financial year.

8. The amounts ascertained under the last foregoing paragraph shall be added together and their sum shall be divided by two; and the result shall be the total number of houses, in relation to the local authority, for the relevant financial year.

Section 3.

SECOND SCHEDULE

SUPPLEMENTS TO CERTAIN SUBSIDIES

1. To the sum of thirty-two pounds specified in paragraph (a) of subsection (4) of section three of this Act an additional sum calculated in accordance with the next following paragraph shall be added if, and only if, in respect of the financial year immediately preceding that in which the approved house in question was completed the rate levied by the rating authority in the district of the local authority exceeded the average rate for all rating areas in Scotland.

2.—(1) For the purposes of the last foregoing paragraph the additional sum shall be the appropriate sum shown in the second column of the following Table:—

TABLE

Where the amount of the local authority's reduced deficit—	Additional sum—
exceeds the product of a rate of one shilling and three pence but not of a rate of two shillings and six pence;	eight pounds.
exceeds the product of a rate of two shillings and six pence but not of a rate of three shillings and nine pence;	sixteen pounds.
exceeds the product of a rate of three shillings and nine pence.	twenty-four pounds.

(2) In the foregoing sub-paragraph—

- (a) "the local authority's reduced deficit" means the deficit referred to, in relation to the local authority, in paragraph (a) of subsection (4) of section three of this Act less the amount which bears to that deficit the same proportion as the amount of the exchequer equalisation grant payable to the local authority for the relevant financial year

under the Local Government (Financial Provisions) (Scotland) Act, 1954, bears to the authority's relevant local expenditure as certified by the Secretary of State to have been estimated under the said Act of 1954 according to the latest estimate made before the end of the relevant financial year ; and

2ND SCH.

- (b) references in relation to a local authority to the product of a rate of a specified sum are references to the product of a rate of that sum in the pound for the district of the local authority ;

and subsections (5) and (7) of section one hundred and forty-five of the Local Government Act, 1948, shall apply for the purposes of calculating that product.

3. In this Schedule—

“rate”, in relation to a burgh, includes the domestic water rate and, in relation to a county, means the average rate for the landward area of the county ;

“average rate”, in relation to any area or aggregate of areas, means the amount arrived at by dividing the estimated receipts from all the rates levied in the area, or, as the case may be, all the areas, by the net rateable valuation of the area, or, as the case may be, all the areas ;

“net rateable valuation”, in relation to any area or aggregate of areas, means the total of the rateable values of the lands and heritages in that area, or, as the case may be, those areas, as shown in the valuation roll or rolls in force on the first day of the year in question, less the total of the rateable values so shown of any lands and heritages exempt from rates or unlet ; and

“rating authority” has the like meaning as in Part XI of the Local Government (Scotland) Act, 1947.

THIRD SCHEDULE

Section 7.

PROVISIONS FOR ASCERTAINING THE COST OF CERTAIN SITES

1. For the purposes of section seven of this Act, the cost of a site as developed shall be taken to be—

(a) in the case of a site acquired by a local authority under any enactment relating to housing, the expenditure incurred by the local authority in purchasing the site ; and

(b) in any other case, the value of the site as certified by the Secretary of State,

plus, in either case, a sum representing—

(i) any such expenses as, in the opinion of the Secretary of State, have been or will be properly incurred for making the site suitable for the purpose of providing the buildings erected or to be erected thereon, being expenses incurred

3RD SCH.

or to be incurred by the local authority or other body providing those buildings for the construction or widening of streets, the provision of sewers and water-mains, or the execution of any special works rendered necessary by the physical characteristics of the land ; and

- (ii) any such expenses which have been, or in the opinion of the Secretary of State will be, incurred in respect of other matters as the Secretary of State, with the consent of the Treasury, may determine to be expenses properly forming part of the cost of making the site suitable for the said purpose.

2. In determining for the purposes of the foregoing paragraph the amount of any such expenses as are therein mentioned, the Secretary of State shall have regard to any estimate of those expenses submitted to him by the local authority or other body ; and for the purposes of sub-paragraph (b) of that paragraph, the value certified in the case of a site in relation to which any such expenses have been incurred shall be the value of that site in the condition in which it would be if those expenses had not been incurred.

3. For the purposes of the said section seven and of this Schedule, any question—

- (a) as to what constitutes a separate site ; or
- (b) as to the portion of such site on which any building has been erected ; or
- (c) as to how much of any expenditure incurred by a local authority in purchasing land is to be attributed to any site forming part only of that land,

shall be determined by the Secretary of State.

4. For the purposes of any determination under sub-paragraph (a) or sub-paragraph (b) of the last foregoing paragraph—

- (a) where two buildings are contiguous to each other, or are separated from each other by a street only, the two buildings shall, if the Secretary of State thinks proper, be deemed to be on the same site ; and
- (b) where any land has been purchased in connection with the provision of a building and has been or is to be used for the purpose of a new street to which the building is or will be contiguous, that land shall be deemed to form part of the site of the building.

5. For the purposes of the last foregoing paragraph—

- (a) the expression “ building ” includes any land appertaining to a building and any land appropriated for the purposes of a building which has not been erected ;
- (b) the expression “ street ” includes any court, alley, passage or square, whether a thoroughfare or not, and includes a road maintainable by a town council or a county council.

FOURTH SCHEDULE

Section 35.

MODIFICATIONS OF OTHER ENACTMENTS

PART I

*Modifications consequential on the provisions of
Parts I and II of this Act**The Act of 1950
(14 Geo. 6 c. 34)*

1. In paragraph (b) of subsection (3) of section seventy-three of the Act of 1950 (which relates to conditions to be observed in the management of local authorities' houses) the reference to contributions under section one of the Housing (Agricultural Population) (Scotland) Act, 1938, or section eighty-five of the Act of 1950 shall include a reference to subsidies under section four of this Act.

2. In subsection (4) of section eighty-seven of the Act of 1950 (which relates to housing accommodation provided by a development corporation which is transferred to a local authority) the reference to payments under subsection (3) of that section shall include a reference to subsidies under Part I of this Act.

3. In subsection (5) of the said section eighty-seven (which relates to housing accommodation provided by a development corporation which is sold) the reference to contributions or sums for the time being payable under the Act of 1950 or under section two of the Act of 1957, in respect of a dwelling provided by a development corporation shall include a reference to subsidies for the time being payable under Part I of this Act in respect of a house so provided.

4. Subsection (2) of section one hundred and twenty-eight of the Act of 1950 (which relates to the time and manner of paying contributions under certain enactments and to conditions) and section one hundred and twenty-nine of that Act (which relates to the powers of the Secretary of State to withhold contributions in the event of default) shall apply to subsidies under Part I of this Act as they apply to the contributions therein referred to; and accordingly Part II of the Sixth Schedule to that Act shall have effect with the addition, at the end thereof, of the words:—

“ 15. Part I of the Housing (Scotland) Act, 1962.”

and, in the said subsection (2), the reference to section ninety-three of the Act of 1950 shall include a reference to section nineteen of this Act.

5. Section one hundred and thirty of the Act of 1950 (which relates to the effect on certain contributions of a house ceasing to be available as such) shall apply to subsidies under Part I of this Act as it applies to the contributions therein referred to; and accordingly the Tenth Schedule to that Act shall have effect with the addition, at the end thereof, of the words:—

“ 7. Paragraph (c) of subsection (2) of section two of the Housing (Scotland) Act, 1962.”

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6. Subsection (1) of section one hundred and eighty-four of the Act of 1950 shall have effect as if in the definition of "Exchequer contribution", after the words "a contribution" there were inserted the words "or a subsidy"; and Part I of the Sixth Schedule to that Act shall have effect with the addition, at the end thereof, of the words:—

"15. Part I of the Housing (Scotland) Act, 1962."

The Act of 1957

(5 & 6 Eliz. 2 c. 38)

7. Subsection (3) of section two of the Act of 1957 (which relates to conditions to which certain contributions are to be subject) shall apply to subsidies under paragraphs (a) and (b) of subsection (1), and paragraph (a) of subsection (2), of section two of this Act as it applies to the contributions therein specified.

The Town and Country Planning (Scotland) Act, 1959

(7 & 8 Eliz. 2 c. 70)

8. In the definition of "grant-aided function" in subsection (1) of section fifty-four of the Town and Country Planning (Scotland) Act, 1959 (which excludes any Exchequer subsidy under any of the enactments specified in Part I of the Sixth Schedule to the Act of 1950), the reference to such a subsidy shall include a reference to a subsidy under Part I of this Act.

PART II

Modifications relating to houses unfit for human habitation

The Act of 1950

(14 Geo. 6 c. 34)

9. In section six of the Act of 1950 (which relates to the duty of local authorities to inspect their districts) the words from "and for that purpose" to the end of the section shall cease to have effect.

10. In section ten of the Act of 1950 (which relates to the making of a closing or a demolition order in respect of a house on the application of the owner of the house) for any reference to subsection (4) of section nine of that Act there shall be substituted a reference to subsection (1) or subsection (2) of that section, and the words from "and such order shall have effect" to "subsection (1) of the said section nine" shall cease to have effect.

11. In subsection (1) of section twelve of the Act of 1950 (which relates to the powers of local authorities in relation to buildings consisting wholly of closed houses) for the words "been made" there shall be substituted the words "become operative"; for the words "and such orders have not been determined" there shall be substituted the words "and none of those orders has been determined or is subject to a suspension order"; and for paragraph (a) there shall be substituted the following paragraph:—

"(a) the local authority may determine the closing orders and make a demolition order under section nine of this Act in respect of the whole building, so however that subsections (4) to (6) of the said section nine shall not apply to the order; or".

12. For section thirteen of the Act of 1950 (which relates to houses subject to building preservation orders) there shall be substituted the following section :—

4TH SCH.

“Provisions as to houses subject to building preservation orders, etc. 13.—(1) Where apart from this section a local authority would be under a duty to make a demolition order under this Part of this Act with respect to a building—

(a) in relation to which a building preservation order made under section twenty-seven of the Town and Country Planning (Scotland) Act, 1947, is in force, or

(b) which is included in any list compiled or approved under section twenty-eight of that Act,

they shall not make a demolition order but instead shall make a closing order or closing orders in respect of the house or houses comprised in the building.

(2) Where a building to which a demolition order made under this Part of this Act by a local authority applies (whether or not that order has become operative) becomes—

(a) subject to a building preservation order made under the said section twenty-seven, or

(b) included in any list compiled or approved under the said section twenty-eight,

the local authority shall determine the demolition order and make a closing order or closing orders in respect of the house or houses comprised in the building.

(3) The provisions of section nine of this Act shall apply, with any necessary modifications, to a closing order made under this section as they apply to a closing order made under that section.”

13. Section fourteen of the Act of 1950 shall have effect as if for any reference therein to a house there were substituted a reference to a building, and as if there were added the following subsection :—

“(3) In the application of this section to a demolition order made in respect of a building comprising two or more parts separately owned—

(a) any reference to the owner of the building shall be construed as a reference to the owners of the several parts comprised in the building ;

(b) without prejudice to the powers of the local authority under subsection (1) of this section, the duty imposed by that subsection on the owners of the several parts comprised in the building to demolish the building shall be regarded as a duty to arrange jointly for the demolition of the building ; and

(c) subsection (2) of this section shall have effect subject to the proviso that any sum recoverable or payable

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by the local authority under that subsection shall be recoverable from or payable to the several owners in such proportions as the owners may agree or, failing agreement, as shall be determined by an arbiter nominated by the owners or, failing such nomination, nominated on the application of the authority or any of the owners by the sheriff."

14. In section fifteen of the Act of 1950 (which prohibits the use of premises in contravention of closing orders or undertakings)—

(a) in paragraph (a), for the words "for any purpose" there shall be substituted the words "for human habitation", and for the words "the purpose for which the premises are proposed to be used" there shall be substituted the words "the use of the premises for that purpose"; and

(b) in paragraph (b), for the word "given" there shall be substituted the words "accepted by the local authority".

15. In section sixteen of the Act of 1950 (which relates to appeals), in subsection (1)—

(a) paragraph (d) shall have effect with the addition, at the end thereof, of the words "or a refusal to determine a demolition order"; and

(b) paragraph (iii) of the proviso shall cease to have effect; and for paragraph (i) of subsection (2) there shall be substituted the following paragraph:—

"(i) if the appeal relates to a closing order or a demolition order the sheriff may consider any undertaking such as is specified in relation to such an order in subsection (4) of section nine of this Act, and, if he thinks it proper to do so having regard to the undertaking, may direct the local authority to make a suspension order under the said subsection (4)."

16. In section eighteen of the Act of 1950 (which relates to the power of local authorities to cleanse houses to which demolition orders apply) any reference to a house shall include a reference to a building.

17. In section twenty of the Act of 1950 (which relates to charging orders) any reference to a house shall include a reference to a building.

18. In section twenty-four of the Act of 1950 (which relates to temporary shelters, etc.) for the words "references to a house include" there shall be substituted the words "any reference to a house, or to a building, includes".

19. In section twenty-six of the Act of 1950 (which relates to clearance orders) subsections (4) and (5) shall cease to have effect.

20. In section one hundred and thirty-one of the Act of 1950 (which empowers local authorities to pay removal and other allowances to certain persons displaced), in subsection (1), for any reference to subsection (2) of section nine of that Act there shall be substituted a reference to subsection (4) of the said section nine.

21. The following provisions of the Act of 1950 (which relate to the sending by the Secretary of State of notice to certain persons in relation to clearance orders and to compulsory purchase orders respectively) shall cease to have effect:—

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- in the First Schedule, in paragraph 6, sub-paragraph (c) of the proviso; and
- in the Third Schedule, paragraph 8.

The Housing (Repairs and Rents) (Scotland) Act, 1954

(2 & 3 Eliz. 2 c. 50)

22. In section three of the Housing (Repairs and Rents) (Scotland) Act, 1954 (which relates to the power of local authorities to purchase houses liable to demolition or closing orders), in subsection (1)—

- (a) in paragraph (a), for the words “in pursuance of a notice served by them under subsection (1) of” there shall be substituted the word “under”; and
- (b) in paragraph (b), for the words from “recall a closing order” to the end of the paragraph, there shall be substituted the words “determine closing orders in respect of two or more houses comprised in a building and to make a demolition order in respect of the whole building”;

and any reference in the said section (apart from paragraph (b) of the said subsection (1)) to a house shall include a reference to a building.

23. In section eleven of the Housing (Repairs and Rents) (Scotland) Act, 1954 (which makes minor amendments of the Act of 1950), in subsection (3), for any reference to subsection (2) of section nine of the Act of 1950, there shall be substituted a reference to subsection (4) of the said section nine.

24. In section fifteen of the Housing (Repairs and Rents) (Scotland) Act, 1954 (which relates to the interpretation of that Act), in subsection (2), for the words from “made in lieu of” to “subsection (4) of” there shall be substituted the word “under”.

The Act of 1957

(5 & 6 Eliz. 2 c. 38)

25. In section twenty of the Act of 1957 (which relates to payments in respect of unfit but well maintained houses)—

- (a) in subsection (2), in paragraph (a), for the word “thereof” there shall be substituted the words “of the building in which it is comprised”, and, in paragraph (c), for the words “sanitary defects in or related to the house” there shall be substituted the words “defects in the house in respect of any such matters as are mentioned in paragraphs (b) to (k) of subsection (1) of section twenty-four of the Housing (Scotland) Act, 1962”;
- (b) subsection (4) shall have effect as if after the word “house” there were inserted the words “comprised in a building”; and
- (c) in subsection (5), for the words from “made in lieu of” to “subsection (4) of” there shall be substituted the word “under”.

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PART III

*Modifications relating to other matters**The Housing &c. Act, 1923*
(13 & 14 Geo. 5 c. 24)

26. Section two of the Housing &c. Act, 1923 (under which local authorities may give financial assistance for the provision of housing accommodation), shall cease to have effect except as respects houses built before the commencement of this Act.

The Act of 1950
(14 Geo. 6 c. 34)

27. Section twenty-one of the Act of 1950 (which contains provisions as to charging orders) shall have effect as if,—

- (a) in paragraph (a) of subsection (2) thereof, for the words “and teinds” there were substituted the words “teinds, ground annuals, stipends and standard charges in lieu of stipends”;
- (b) in subsection (4), for the words from “rentcharge” to the end of the subsection there were substituted the word “feuduty”;
- (c) in subsection (5), for the words “or rentcharge may be transferred” there were substituted the words “and sums payable thereunder”.

28. In section twenty-five of the Act of 1950 (which relates to clearance areas) in paragraph (i) of subsection (1), the words “by reason of disrepair or sanitary defects” shall cease to have effect.

29. In section forty of the Act of 1950 (which relates to well-maintained houses) in subsection (1), the words “notwithstanding its sanitary defects” shall cease to have effect.

30. Section sixty-two of the Act of 1950 (which relates to the purposes for which land may be acquired by a local authority) shall have effect as if, in the proviso thereto, for the word “subsection” there were substituted the word “section” and as if for the words from “entered in the valuation roll” to the end of the proviso there were substituted the words “used for agriculture, and which is required in connection with that use of that land”.

31. Section one hundred and twenty-one of the Act of 1950 (which relates to arrangements by local authorities with housing associations and development corporations for the improvement of housing accommodation) shall have effect as if, in subsection (3), after the word “completed” there were inserted the words “or for such period, not exceeding sixty financial years, beginning as aforesaid as may be determined by the Secretary of State”.

32. In subsection (1) of section one hundred and thirty-eight of the Act of 1950 (which relates to the amounts to be carried to the credit of a local authority's housing revenue account) the reference to Exchequer contributions shall be construed as including a reference to payments under subsections (2) and (4) of section eighty-seven of the Act of 1950 and payments under subsections (2) and (4) of section nine of this Act.

33. As respects any financial year beginning on or after the sixteenth day of May, nineteen hundred and sixty-one, subsection (4) of section one hundred and thirty-eight of the Act of 1950 (which relates to the credits and debits to be carried to housing revenue

accounts) shall have effect as if there were added at the end thereof the following proviso, that is to say:—

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“Provided that, in the case of incomings and outgoings other than those mentioned in the foregoing provisions of this section, directions under this subsection may (instead of directing particular amounts to be credited or debited) direct generally that credits or debits shall be made in respect of incomings or outgoings of a kind specified in the direction.”

34. As respects any financial year beginning on or after the sixteenth day of May, nineteen hundred and sixty-one, for section one hundred and thirty-nine of the Act of 1950 (which relates to the disposal of balances in housing revenue accounts) there shall be substituted the following section, that is to say:—

“Disposal
of balances
in housing
revenue
accounts.

139. Any surplus shown in a housing revenue account at the end of a financial year may be applied by the local authority, in whole or in part, in making good to the general rate fund any contribution credited to the account under paragraph (c) of subsection (1) of section one hundred and thirty-eight of this Act and subsection (1) of section five of the Housing and Town Development (Scotland) Act, 1957, in any of the nine last preceding financial years, and, so far as not so applied, shall be carried to the credit of the account for the next financial year.”

35. In subsection (1) of section one hundred and eighty-four of the Act of 1950 (which relates to interpretation) the definitions of “block of flats” and “sanitary defects” shall cease to have effect.

36. In paragraph 12 of the Eighth Schedule to the Act of 1950 (which relates to local authorities' contributions to housing revenue accounts) the words “(in this Act referred to as an additional contribution)” shall cease to have effect.

FIFTH SCHEDULE REPEALS

Section 35.

Session and Chapter	Short Title	Extent of Repeal
14 Geo. 6. c. 34	The Housing (Scotland) Act, 1950.	In section six, the words from “and for that purpose” to the end of the section. In section ten, the words from “and such order shall have effect” to “subsection (1) of the said section nine”. In section sixteen, in the proviso, in paragraph (ii) the word “and” and paragraph (iii). In section twenty-five, in subsection (1), in paragraph (i), the words “by reason of disrepair or sanitary defects”. In section twenty-six, subsections (4) and (5). In section forty, in subsection (1), the words “notwithstanding its sanitary defects”.

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Session and Chapter	Short Title	Extent of Repeal
14 Geo. 6. c. 34 — <i>cont.</i>	The Housing (Scotland) Act, 1950— <i>cont.</i>	In section eighty-two, in subsection (2), the words “in any of the five years next following the date on which he recognises the said central association or body”. In section one hundred and eighty-four, in subsection (1), the definitions of “block of flats” and “sanitary defects”, and subsection (2). In the First Schedule, in paragraph 6, in the proviso, subparagraph (c). In the Third Schedule, paragraph 8. In the Eighth Schedule, in paragraph 12, the words “(in this Act referred to as an additional contribution)”.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Industrial and Provident Societies Act, 1893 ...	56 & 57 Vict. c. 39.
Public Works Loans Act, 1897	60 & 61 Vict. c. 51.
Housing Act, 1914	4 & 5 Geo. 5. c. 31.
Increase of Rent and Mortgage Interest (Restrictions) Act, 1920.	10 & 11 Geo. 5. c. 17.
Trusts (Scotland) Act, 1921	11 & 12 Geo. 5. c. 58.
Housing, &c. Act, 1923	13 & 14 Geo. 5. c. 24.
Housing (Scotland) Act, 1925	15 & 16 Geo. 5. c. 15.
Housing (Agricultural Population) (Scotland) Act, 1938.	1 & 2 Geo. 6. c. 38.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947.	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Agricultural Holdings (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 75.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Income Tax Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 10.
Housing (Scotland) Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 63.
Local Government (Financial Provisions) (Scotland) Act, 1954.	2 & 3 Eliz. 2. c. 13.
Housing (Repairs and Rents) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 50.
Valuation and Rating (Scotland) Act, 1956 ...	4 & 5 Eliz. 2. c. 60.
Rent Act, 1957	5 & 6 Eliz. 2. c. 25.
Housing and Town Development (Scotland) Act, 1957.	5 & 6 Eliz. 2. c. 38.
House Purchase and Housing Act, 1959 ...	7 & 8 Eliz. 2. c. 33.
Town and Country Planning (Scotland) Act, 1959	7 & 8 Eliz. 2. c. 70.